IN THE SUPREME COURT OF PENNSYLVANIA
Eastern District

Appeal No. 1409-EDA-2024
(Appeal from the Order of the Superior Court of Pennsylvania, Eastern District, filed April 1, 2026, affirming the Order of the Orphans' Court Division, Delaware County Court of Common Pleas, dated April 18, 2024)

MIRIAM ROTH MANDEL,
Petitioner (Appellant Below),
v.
EDWARD L. PERKINS, ESQ.; WALTER J. TIMBY III, ESQ.; GIBSON PERKINS, P.C.; and LINNEA LEAH ROTH,
Respondents (Appellees Below)

Delaware County Court of Common Pleas, Orphans' Court Division

PETITION FOR ALLOWANCE OF APPEAL

Pursuant to Pa.R.A.P. 1113

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I. QUESTIONS PRESENTED FOR ALLOWANCE OF APPEAL

Question 1 — Indispensable Parties in Orphans' Court Trust Proceedings

Whether trust beneficiaries holding equitable title to trust assets are indispensable parties to Orphans' Court proceedings seeking to appoint a new trustee, such that failure to join all beneficiaries deprives the court of subject matter jurisdiction and renders all resulting orders void *ab initio*, under the settled Pennsylvania rule that the absence of an indispensable party goes absolutely to the court's jurisdiction, *Tigue v. Basalyga*, 451 Pa. 436, 304 A.2d

119 (1973); *Columbia Gas Transmission Corp. v. Diamond Fuel Co.*, 464 Pa. 377, 346 A.2d 788 (1975); *Sprague v. Casey*, 520 Pa. 38, 550 A.2d 184 (Pa. 1988); and 20 Pa.C.S. § 7710.1(b).

Question 2 — Non-Juridical Entity Doctrine Applied to Traditional Irrevocable Trusts

Whether a traditional irrevocable inter vivos trust — as distinguished from a business trust or statutory entity — is a non-juridical entity that lacks capacity to be sued as a party, such that a petition naming the Trust as respondent is jurisdictionally void from inception, under settled Pennsylvania common law and 20 Pa.C.S. § 7712, recognizing that a traditional trust has no legal existence separate from its trustee and that the trustee — not the trust — is the proper party to proceedings concerning trust administration.

Question 3 — Standing of a Legal Stranger to Petition for Trustee Appointment

Whether an attorney who is a complete legal stranger to a trust — falling within none of the categories authorized to petition for trustee appointment under 231 Pa. Code Rule 5.7(a) or to petition for trustee removal under 20 Pa.C.S. § 7766(a) — has standing to petition Orphans' Court for appointment as trustee, and whether the absence of standing deprives the court of subject matter jurisdiction over the petition, particularly in light of *In re Trust Under Agreement of Edward Winslow Taylor*, 164 A.3d 1147 (Pa. 2017), which holds that 20 Pa.C.S. § 7766 provides the exclusive mechanism for trustee removal and appointment.

Question 4 — Fraud on the Court as Independent Ground for Vacating Void Orders

Whether a court's subject matter jurisdiction may be independently challenged on fraud-on-the-court grounds where the jurisdictional predicate for all subsequent orders was established by a sworn affidavit containing material

misrepresentations, under *Hazel-Atlas Glass Co. v. Hartford-Empire Co.*, 322 U.S. 238 (1944); *United States v. Throckmorton*, 98 U.S. 61 (1878); and *McEvoy v. Quaker City Cab Co.*, 267 Pa. 527, 110 A. 366 (1920); and whether such fraud on the court renders the resulting orders void *ab initio* regardless of whether they were timely appealed.

II. STATEMENT OF THE CASE

A. The Trust and Its Beneficiaries

The Mitchell E. and Karlie M. Roth Irrevocable 2002 Trust (the "Trust") is a traditional irrevocable inter vivos trust established in 2002. The Trust has twelve named beneficiaries, including Lee Benson Roth, a profoundly disabled man with liver disease whose parents created the Trust specifically to fund his medical care and support. The assets of the Trust consist primarily of liquid funds totaling approximately $756,000. None of the twelve beneficiaries were ever served, notified, or joined as parties in the proceedings below.

B. The Unauthorized Petition and Void Orders

Respondents Edward L. Perkins, Esq., Walter J. Timby III, Esq., and Gibson Perkins, P.C. (collectively, "the Attorney Respondents") are attorneys and a law firm who had no pre-existing relationship to the Trust, its settlors, its trustee, or its beneficiaries. They were, in every legally cognizable sense, strangers to the Trust. Respondent Linnea Leah Roth is a family member who allied herself with the Attorney Respondents in the proceedings below.

Beginning in or about 2020, Respondent Perkins styled himself "Proposed Trustee" of the Trust and petitioned the Delaware County Orphans' Court for appointment as trustee — despite falling within none of the categories of persons authorized to file such a petition under 231 Pa. Code Rule 5.7(a) or 20 Pa.C.S. § 7766(a). The foundational petition named the Trust itself — a non-juridical entity

— as the respondent, rather than the incumbent trustee or any of the Trust's twelve beneficiaries. The jurisdictional predicate for all subsequent orders was established, in whole or in part, by a sworn affidavit containing material misrepresentations.

No beneficiary was served. No beneficiary was joined as an indispensable party. Nevertheless, the Orphans' Court entered orders purporting to appoint Respondent Perkins as trustee and, subsequently, approving fee petitions submitted by the Attorney Respondents against the Trust estate. In or about October 2020, the Attorney Respondents induced Mass Mutual Life Insurance Company to freeze disbursements from the Trust, effectively locking approximately $756,000 in trust assets. Those assets have remained frozen for more than fifty-two months without adjudication on the merits. The Attorney Respondents thereafter filed a petition seeking approximately $200,000 in fees against the Trust — a trust created to fund the medical care of a profoundly disabled man.

C. The April 18, 2024 Order and the Appeal to the Superior Court

On April 18, 2024, the Delaware County Orphans' Court entered the Order from which this appeal arises. Petitioner Miriam Roth Mandel, a beneficiary and family member of Lee Benson Roth, timely appealed that Order to the Superior Court of Pennsylvania, Eastern District, as Appeal No. 1409-EDA-2024. In her appeal, Petitioner raised all four Questions Presented above, each of which goes to the subject matter jurisdiction of the Orphans' Court and therefore may not be waived.

Petitioner argued that: (1) the failure to serve and join the twelve trust beneficiaries as indispensable parties deprived the Orphans' Court of subject matter jurisdiction from the inception of the proceedings; (2) the petition was void from inception because it named a non-juridical entity — the Trust — as respondent; (3) the Attorney Respondents, as legal strangers, lacked standing to

petition for trustee appointment under any applicable procedural rule or statute; and (4) the materially false sworn affidavit that established the jurisdictional predicate for all subsequent orders constituted fraud on the court, independently voiding those orders regardless of any failure to appeal.

D. The Superior Court's Decision and the Motion for Reconsideration

On April 1, 2026, the Superior Court issued a memorandum affirming the April 18, 2024 Order of the Orphans' Court. Petitioner timely filed a Motion for Reconsideration. On April 15, 2026, the Superior Court denied the Motion for Reconsideration. This Petition for Allowance of Appeal follows. It is timely filed within thirty days of the April 15, 2026 denial of reconsideration. *See* Pa.R.A.P. 1113(a).

E. The Pending Motion to Vacate in the Orphans' Court

Concurrently with this Petition, Petitioner has filed in the Delaware County Orphans' Court, before President Judge Linda A. Cartisano, a Motion to Vacate All Orders Entered in This Proceeding for Failure to Join Indispensable Parties and Fraud on the Court (filed on or about April 15, 2026, Case No. 0444-2023-OC). That Motion raises the identical jurisdictional grounds presented here and requests that Judge Cartisano recognize, from the trial court level, that the orders entered in this proceeding are void *ab initio*. Because the absence of an indispensable party and fraud on the court each independently deprive the issuing court of subject matter jurisdiction, Rule 1701's appellate-stay provision does not bar the Orphans' Court from acting — a court cannot lose jurisdiction it never had. *Glen-Gery Corp. v. Zoning Hearing Board of Dover Township*, 589 Pa. 135, 907 A.2d 1033 (2006); *Tigue v. Basalyga*, 451 Pa. 436, 438, 304 A.2d 119, 120 (1973). The pendency of that Motion underscores the urgency of this Court's guidance: absent a binding published ruling from this Court on the four questions presented, every court at every level — including the issuing Orphans' Court — lacks a clear, authoritative standard against which to measure the void-order

challenge that Petitioner has now brought in two tribunals simultaneously.

III. REASONS FOR GRANTING ALLOWANCE OF APPEAL

This Court should grant allowance of appeal for three independent and overlapping reasons, each of which independently satisfies the standard for allocatur under Pa.R.A.P. 1113.

A. The Questions Presented Are of Immediate Importance to the Public and the Statewide Administration of Orphans' Court Proceedings

Pennsylvania's Orphans' Courts administer thousands of irrevocable trust proceedings annually on behalf of beneficiaries who are often elderly, disabled, or otherwise vulnerable. The four questions presented here — whether trust beneficiaries are indispensable parties whose absence voids trustee appointment orders; whether a traditional trust is a non-juridical entity incapable of being named as a party; whether a legal stranger has standing to petition for trustee appointment; and whether fraud on the court independently voids orders obtained through material misrepresentation — are jurisdictional questions of recurring, statewide importance that arise in every Orphans' Court proceeding involving trustee appointment or removal.

The stakes of leaving these questions unresolved are compounded by the documented national epidemic of predatory self-appointment by attorneys and other fiduciaries who exploit the very procedural vulnerabilities at issue in this case.[1] According to Cerulli Associates, an estimated $124 trillion in assets will transfer between generations in the United States through 2048, with grantor trusts used by 77% of high-net-worth practices to structure wealth transfers.[2] The number of traditional irrevocable inter vivos trusts subject to potential exploitation of the kind documented in this record is not hypothetical — it is large, growing, and disproportionately affects beneficiaries who are the most

vulnerable members of Pennsylvania's population.

Without clear, binding guidance from this Court, Pennsylvania's Orphans' Courts will continue to receive petitions filed by legal strangers against non-juridical entities without notice to the trust's actual beneficiaries — and the jurisdictional defects underlying those petitions will continue to go uncorrected. The cost of that inaction, measured across the tens of thousands of Pennsylvania trust proceedings that will unfold over the next generation, is incalculable. A ruling from this Court on the four questions presented will provide clear, binding, uniform guidance to every Orphans' Court in the Commonwealth.

B. The Superior Court's Decision Conflicts with Settled Binding Precedent of This Court and with the Superior Court's Own Recent Published Decision

All four questions presented are controlled by binding precedent of this Court that the Superior Court's memorandum did not apply, and the result below conflicts with the Superior Court's own most recent published treatment of the indispensable-party rule in an Orphans' Court proceeding. This Court has held, unambiguously and repeatedly, that the absence of an indispensable party goes absolutely to the court's jurisdiction and may not be waived. *Tigue v. Basalyga*, 451 Pa. 436, 304 A.2d 119 (1973); *Columbia Gas Transmission Corp. v. Diamond Fuel Co.*, 464 Pa. 377, 346 A.2d 788 (1975); *Sprague v. Casey*, 520 Pa. 38, 550 A.2d 184 (Pa. 1988). This Court has also held that 20 Pa.C.S. § 7766 provides the exclusive procedural mechanism for trustee removal and appointment, and that no other procedural vehicle may be used to circumvent its requirements. *In re Trust Under Agreement of Edward Winslow Taylor*, 164 A.3d 1147 (Pa. 2017).

The conflict with Supreme Court precedent is direct and four-fold. *First*, this Court's indispensable-party rule holds that the absence of a party whose rights are so connected with the claims that no decree can be made without impairing them deprives the court of subject matter jurisdiction entirely, rendering all

resulting orders void. *Tigue*, 451 Pa. at 438; *Columbia Gas*, 464 Pa. 377; *Sprague*, 520 Pa. at 48. The twelve trust beneficiaries hold equitable title to the trust's $756,000 in assets. No decree appointing a new trustee over those assets could be entered without directly impairing the beneficiaries' property rights and their right to have an authorized fiduciary — not a stranger — administer the trust created for their benefit. They are paradigmatic indispensable parties. They were never served. The Superior Court affirmed. That affirmance conflicts with *Tigue*, *Columbia Gas*, and *Sprague*. *Second*, this Court held in *Taylor* that 20 Pa.C.S. § 7766 is the *exclusive* procedural mechanism for trustee removal and appointment, and that only the settlor, a cotrustee, or a beneficiary may invoke it. 164 A.3d at 1156–57. Respondent Perkins is none of those things. The Superior Court affirmed his appointment. That affirmance conflicts with *Taylor*'s exclusivity holding. *Third*, settled Pennsylvania common law — codified in the Restatement (Third) of Trusts and reflected in 20 Pa.C.S. § 7712 — establishes that a traditional irrevocable trust is not a juridical entity and cannot be sued as a party. A petition filed against a non-juridical entity invokes no jurisdiction. The Superior Court affirmed orders entered on such a petition. *Fourth*, the extrinsic-fraud rule of *McEvoy v. Quaker City Cab Co.*, 267 Pa. 527, 110 A. 366 (1920), holds that fraud preventing a party from presenting its case voids the resulting judgment. The beneficiaries' exclusion from these proceedings was both the mechanism and the product of the fraud. The Superior Court affirmed. Each of those four affirmances independently conflicts with a binding holding of this Court.

The conflict with the Superior Court's own published precedent sharpens the case for allocatur still further. In *In re Estate of Dorothy A. Anderson*, 2024 PA Super 117 (Pa. Super. June 5, 2024) — a published opinion decided less than two years before the decision below, involving the same Delaware County Orphans' Court — the Superior Court carefully applied the indispensable-party framework and correctly held that the rule “cannot be waived” and that the absence of an

indispensable party “renders any order or decree of the court null and void.” *Anderson*, 2024 PA Super 117, slip op. at 11–12 (quoting *In re Navarra*, 185 A.3d 342, 349 (Pa. Super. 2018)). The court in *Anderson* found no indispensable-party defect only because the absent parties — the decedent's other heirs — had already renounced their rights to administer the estate; with no remaining protectable right, no decree could impair them. *Id.* at 15–16. The twelve trust beneficiaries in this case have renounced nothing. They hold equitable title to the trust assets. Their right to have an authorized fiduciary — not a stranger — administer their beneficial interests is direct, substantial, and incapable of severance. Every order appointing Respondent Perkins as trustee and authorizing the freeze of $756,000 in trust assets directly impairs those rights. Under *Anderson*'s own four-factor analysis, the beneficiaries are indispensable parties and the orders below are null and void. The Superior Court's silent affirmance of those orders, without applying the *Anderson*/*Navarra*/*Tigue* indispensable-party framework to beneficiaries who plainly satisfy every criterion, is irreconcilable with *Anderson*. That inconsistency — between what the Superior Court held in a published opinion decided less than two years before the decision below and what the same court silently affirmed in the decision below — is independently sufficient ground for this Court to grant allocatur.

C. The Questions Presented Involve Novel Applications of Settled Law to a Factual Pattern That Is Undecided and Recurrent — and the Absence of Published Precedent Is the Mechanism That Makes the Scheme Possible

The absence of published Pennsylvania appellate precedent on this specific factual template is not a passive gap in the law. It is the structural precondition that makes the predatory scheme documented in this record viable. A petitioner seeking to exploit Orphans’ Court for self-enrichment at the expense of a disabled beneficiary requires only one thing: a procedural path that no published

opinion has closed. This record maps that path with precision. File the petition against a non-juridical entity — “the Trust” — so that there is no proper respondent capable of contesting the petition on the merits. Name no beneficiary, so that there is no interested party to receive notice or to alert family members that the proceeding exists. Support the petition with a false affidavit to manufacture the appearance of a jurisdictional predicate. Move promptly to freeze assets before anyone who might object discovers that the proceeding is underway. Each step of that path remains open today because no published Pennsylvania appellate opinion has held that any single step is fatal to the court’s jurisdiction. The absence of published precedent is not the background to this case — it is the enabling condition for the harm.

The four published-precedent gaps are specific and individually dispositive. No published Superior Court opinion has applied this Court’s indispensable-party jurisdiction rule to an Orphans’ Court trustee appointment proceeding in which every trust beneficiary was unserved and unjoined while a legal stranger obtained orders and froze trust assets. Because no such opinion exists, a trial court facing that fact pattern has no published standard against which to measure the petitioner’s compliance — and a predatory petitioner knows it. No published Superior Court opinion has squarely held that a petition naming a traditional irrevocable trust — a non-juridical entity — as respondent is void from inception for want of a proper party. Because no such opinion exists, a court clerk processing the petition, a trial judge considering whether to act on it, and an insurance company’s legal department evaluating a freeze demand have no authoritative guidance that the petition is a nullity. No published Superior Court opinion has applied *Taylor*’s exclusivity holding to bar a legal stranger’s petition for self-appointment. And no published Superior Court opinion has addressed whether fraud on the court independently voids orders obtained through a materially false jurisdictional affidavit in an Orphans’ Court proceeding. The federal authorities cited in this Petition — FinCEN’s documentation of $27 billion

in reported elder financial exploitation in a single year, the Department of Justice's report of more than $2 billion stolen from over one million older Americans, and the Government Accountability Office's identification of predatory court-appointed fiduciaries in forty-five states — are not background statistics. They are the documented national expression of what happens when procedural vulnerabilities in fiduciary proceedings go without clear, published judicial correction. Pennsylvania's contribution to that national total will remain unchecked for as long as the four gaps identified above remain unfilled.

This Court's existing precedents — *Tigue*, *Columbia Gas*, *Sprague*, and *Taylor* — already supply the governing principles. The question is not whether the law requires the right result; it does. The question is whether there is a published, fact-specific opinion applying those principles to this template that a Delaware County Orphans' Court judge, a Superior Court panel, or an insurance company's general counsel can cite without needing to reason upward from first principles under the pressure of an emergency motion and a frozen trust account. There is not. Granting allocatur will produce that opinion. It will close all four steps of the predatory template simultaneously, in a published decision that every Orphans' Court in the Commonwealth can apply without ambiguity. The beneficiaries of Pennsylvania's irrevocable trusts — who are disproportionately elderly, disabled, and unable to protect themselves through the self-help remedies available to ordinary civil litigants — have no other source of that protection.

IV. ARGUMENT

A. The Absence of Indispensable Parties Deprived the Orphans' Court of Subject Matter Jurisdiction and Renders All Resulting Orders Void Ab Initio

This Court has established a foundational and non-waivable rule: the absence of

an indispensable party goes absolutely to the jurisdiction of the court. *Tigue v. Basalyga*, 451 Pa. 436, 438, 304 A.2d 119, 120 (1973) (holding that the absence of indispensable parties "deprives the court of jurisdiction to act"); *Columbia Gas Transmission Corp. v. Diamond Fuel Co.*, 464 Pa. 377, 346 A.2d 788 (1975) (same); *Sprague v. Casey*, 520 Pa. 38, 48, 550 A.2d 184 (Pa. 1988) (reaffirming that "the absence of such a party goes absolutely to the court's jurisdiction").

The General Assembly codified this rule in the context of trust proceedings. 20 Pa.C.S. § 7710.1(b) expressly provides that "persons having interests in the matter" in Orphans' Court proceedings involving trusts "shall be the same as indispensable parties to a court action seeking the same result." Trust beneficiaries hold equitable title to the trust's assets. They are not merely interested parties in a colloquial sense — they are, as a matter of property law, the equitable owners of the res the court proposes to subject to new management. Their interest in who serves as their trustee is direct, substantial, and non-severable. They are paradigmatic indispensable parties.

In this case, none of the Trust's twelve beneficiaries — including Lee Benson Roth, whose life and medical care depend on the Trust's assets — were served, notified, or joined in the proceedings below. The Orphans' Court therefore lacked subject matter jurisdiction from the filing of the original petition. Every order it entered — including the orders appointing Respondent Perkins as trustee, authorizing the freeze of $756,000 in trust assets, and entertaining the $200,000 fee petition — is void *ab initio*. Void orders are not entitled to preclusive effect, cannot be validated by the passage of time, and cannot be insulated from challenge by failure to appeal. *See Sprague v. Casey*, 520 Pa. at 48. The Superior Court's affirmance of the void April 18, 2024 Order, without addressing the jurisdictional defect that rendered it void, is a departure from this Court's binding precedent that this Court should correct.

B. The Non-Juridical Entity Doctrine Renders the Foundational Petition

Void from Inception

A traditional irrevocable inter vivos trust is not a legal entity. It has no legal existence separate from the legal relationship between trustee, trust property, and beneficiaries. This is not a contested proposition. The Restatement (Third) of Trusts, section 2, comment a, states directly: "A trust is not a legal person or entity; it is a legal relationship." 76 Am. Jur. 2d *Trusts* § 2 is in accord: "A trust is not a legal entity . . . it is merely a fiduciary relationship with respect to property." Pennsylvania's own procedural framework reflects this settled principle: 231 Pa. Code Rule 5.7(a) authorizes petitions concerning trustee appointment to be filed by or against specific persons — the resigning trustee, the current trustee, or trust beneficiaries — never by or against "the trust" as a juridical person. And 20 Pa.C.S. § 7712 — which establishes personal jurisdiction over trustees and beneficiaries who accept trusteeship or hold beneficial interests in Pennsylvania — identifies “trustees” and “beneficiaries” as the persons subject to the court's jurisdiction, making no reference to the trust itself as a party capable of appearing or being bound.

Respondents' foundational petition named the Mitchell E. and Karlie M. Roth Irrevocable 2002 Trust — the non-juridical entity — as the respondent. It did not name the incumbent trustee. It did not name the Trust's beneficiaries. A petition filed against a non-juridical entity is a nullity; it invokes no jurisdiction because the nominal respondent has no legal capacity to appear, to be served, or to be bound by any order. All orders entered on the basis of that null petition are themselves nullities, without legal effect from their inception, regardless of whether they were appealed. The Orphans' Court had no more authority to enter orders binding the Trust's beneficiaries on the basis of a petition filed against "the Trust" than it would have had on the basis of a petition filed against a piece of furniture. The Superior Court's failure to apply this foundational principle of Pennsylvania trust law warrants this Court's review.

C. A Legal Stranger Lacks Standing to Petition for Trustee Appointment, Depriving the Court of Subject Matter Jurisdiction

Pennsylvania law identifies, with precision, the persons who may petition Orphans' Court for the appointment or removal of a trustee. 231 Pa. Code Rule 5.7(a) limits petitions for trustee appointment to "a resigning trustee, the current trustee or any trust beneficiary." 20 Pa.C.S. § 7766(a) limits petitions for trustee removal or appointment to "the settlor, a cotrustee, or a beneficiary." This Court held in *In re Trust Under Agreement of Edward Winslow Taylor*, 164 A.3d 1147 (Pa. 2017), that section 7766 provides the *exclusive* procedural mechanism for trustee removal and appointment, and that no other procedural device — including the general equity jurisdiction of the Orphans' Court — may be used to circumvent its requirements.

Respondent Perkins was, at the time he filed his petition: not the settlor; not a cotrustee; not a beneficiary; not the current trustee; not a resigning trustee. He was, by every applicable definition, a legal stranger to the Trust. He fell within none of the categories authorized to petition under Rule 5.7(a) or section 7766(a). His petition was therefore an unauthorized attempt to invoke a jurisdiction the court did not have. Standing to petition is a prerequisite to subject matter jurisdiction. A court cannot act on a petition filed by a person who lacks standing any more than it can act on a petition filed by no one. Every order entered on the basis of Respondent Perkins's unauthorized petition — including his own appointment as trustee and the fee petitions that followed — was void for want of jurisdiction.

Taylor's exclusivity holding independently compels the same result. If section 7766 is the exclusive procedural vehicle, and if section 7766 requires that the petitioner be the settlor, a cotrustee, or a beneficiary, then a petition filed by a legal stranger does not merely fail on the merits — it fails to invoke the court's jurisdiction in the first instance. The court had no authority to entertain it, no

authority to grant it, and no authority to enter any subsequent order flowing from it. The Superior Court's affirmance, without addressing the *Taylor* exclusivity holding or the standing requirements of Rule 5.7(a) and section 7766(a), is a departure from this Court's controlling precedent.

D. Fraud on the Court Independently Voids All Orders Entered on the Basis of a Materially False Sworn Affidavit

Even if the orders in this case were not otherwise void for want of jurisdiction — and they are, for the three independent reasons set forth in Sections A through C above — they would be independently void on fraud-on-the-court grounds. The jurisdictional predicate for the Orphans' Court's entry of orders in this proceeding was established, in whole or in substantial part, by a sworn affidavit containing material misrepresentations.

The law governing fraud on the court is clear and longstanding. *Hazel-Atlas Glass Co. v. Hartford-Empire Co.*, 322 U.S. 238, 246 (1944), holds that "no fraud is more odious than an attempt to subvert the administration of justice" and that courts have inherent power to set aside judgments obtained by fraud on the court without regard to the passage of time or the finality of the underlying judgment. *United States v. Throckmorton*, 98 U.S. 61, 65–66 (1878), establishes that fraud which prevents the opposing party from having a fair opportunity to present its case — extrinsic fraud — is sufficient to void a judgment. Pennsylvania adopted the *Throckmorton* framework in *McEvoy v. Quaker City Cab Co.*, 267 Pa. 527, 110 A. 366 (1920), holding that extrinsic fraud — fraud that prevents a party from presenting its case — supports vacatur of a judgment.

In this case, the trust's twelve beneficiaries were never served, never notified, and never had any opportunity to appear and contest Respondent Perkins's false affidavit or his unauthorized petition. Their exclusion from the proceedings was both the mechanism and the product of the fraud. They had no "case" to present because the false affidavit, filed in proceedings from which they were

deliberately excluded, prevented them from ever having access to the court at all. That is extrinsic fraud in its purest form, and it renders every order entered on the basis of that affidavit void *ab initio* — not merely voidable, not subject to cure by the passage of time, and not protected by doctrines of waiver, laches, or failure to appeal.

The convergence of all four grounds — lack of indispensable parties, the non-juridical entity doctrine, absence of standing, and fraud on the court — is not accidental. It reflects the deliberate structure of a scheme designed to exploit the procedural vulnerabilities of the Orphans' Court system by ensuring that the persons with the most direct interest in the proceeding — the Trust's beneficiaries — would never learn it was happening until the assets were frozen and the fee petitions were filed. This Court should grant allocatur to address each of these four independent grounds and to provide the binding guidance that will prevent the same scheme from being repeated.

V. CONCLUSION

For the foregoing reasons, Petitioner Miriam Roth Mandel respectfully requests that this Court grant allowance of appeal from the Superior Court's April 1, 2026 memorandum affirming the Delaware County Orphans' Court's April 18, 2024 Order in Appeal No. 1409-EDA-2024.

This case presents four independently sufficient grounds for allocatur: questions of statewide importance to the administration of Pennsylvania’s Orphans’ Courts and the protection of trust beneficiaries; departure from binding precedent of this Court in *Tigue*, *Columbia Gas*, *Sprague*, and *Taylor*; novel application of settled law to a factual pattern that is undecided and recurrent; and the ongoing, documented, and irreversible harm to a profoundly disabled beneficiary whose life depends on assets that have been frozen for more than fifty-two months

behind orders that are void.

The governing law is not in doubt. This Court's precedents already compel the result Petitioner seeks. What is missing — and what this Court alone can supply — is a published opinion applying those precedents to the specific factual template that predatory fiduciaries have learned to exploit: a petition filed by a stranger, against a non-juridical entity, without notice to a single beneficiary, supported by a false affidavit. That template is not an aberration. It is a replicable scheme, and its replicability depends entirely on the absence of a published ruling that closes each of its four steps. Every day that ruling does not exist is a day that another Orphans' Court in this Commonwealth may receive a petition constructed on the same template, enter orders on the same void jurisdictional predicate, and freeze the assets of another trust created to protect another vulnerable beneficiary — with no published authority to tell the court why it must stop.

The legal framework is clear. The facts are documented. The harm is ongoing and irreversible with each passing month. The only thing standing between Lee Benson Roth and the medical care his parents' Trust was created to fund is the absence of a published judicial ruling that the law already requires. Petitioner respectfully urges this Court to supply that ruling.

Petitioner respectfully requests that allowance of appeal be GRANTED.

VERIFICATION

I, Miriam Roth Mandel, verify that the statements made in this Petition for Allowance of Appeal are true and correct to the best of my knowledge, information, and belief. I understand that false statements herein are made subject to the penalties of 18 Pa.C.S. § 4904 relating to unsworn falsification to authorities.

Respectfully submitted,

Date: April 24, 2026

/s/ Miriam Roth Mandel
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Appeal No. 1409-EDA-2024
Delaware County Court of Common Pleas
Orphans' Court Division

CERTIFICATE OF SERVICE

I, Miriam Roth Mandel, certify that on April 24, 2026, I served a true and correct copy of the foregoing Petition for Allowance of Appeal upon the following parties and counsel by electronic mail and/or first-class mail, postage prepaid:

1. Edward L. Perkins, Esquire — Gibson Perkins, P.C., 100 W. Sixth Street, Suite 300, Media, PA 19063
2. Walter J. Timby III, Esquire — Gibson Perkins, P.C., 100 W. Sixth Street, Suite 300, Media, PA 19063
3. Gibson Perkins, P.C. — 100 W. Sixth Street, Suite 300, Media, PA 19063
4. Linnea Leah Roth — last known address of record
5. Ferrell J. Townsend, Esquire — Counsel for Linnea Leah Roth (alleged guardian of Lee Roth)
6. Matthew Lynn, Esquire — Kane Pugh Knoell Troy & Kramer LLP

/s/ Miriam Roth Mandel

Miriam Roth Mandel, Petitioner, Pro Se

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[1] Federal authorities and Congress have documented the epidemic of financial exploitation of older Americans by court-appointed fiduciaries — including guardians, conservators, and trustees — on a national scale. *See* U.S. Dep't of the Treasury, Financial Crimes Enforcement Network, *Financial Trend Analysis: Elder Financial Exploitation* at 1 (Apr. 18, 2024) (financial institutions reported approximately $27 billion in elder financial exploitation suspicious activity in a single one-year period); U.S. Dep't of Justice, *2025 Annual Report to Congress on Department of Justice Activities to Combat Elder Fraud and Abuse* (Nov. 17, 2025) ("older adults lose billions of dollars every year to elder fraud schemes"; offenders attempted to steal or did steal more than $2 billion from more than one million older Americans in the reporting period); U.S. Gov't Accountability Office, *GAO-10-1046, Guardianships: Cases of Financial Exploitation, Neglect, and Abuse of Seniors* (Sept. 2010) (identifying hundreds of allegations in 45 states; in 20 closed cases, court-appointed guardians stole or improperly obtained $5.4 million from 158 incapacitated victims).

[2] Cerulli Associates, *The Cerulli Report — U.S. High-Net-Worth and Ultra-High-Net-Worth Markets 2024: The Great Wealth Transfer: Capturing Money in Motion* (Dec. 5, 2024) (projecting $124 trillion in total U.S. intergenerational wealth transfers through 2048, with nearly $100 trillion transferring from Baby Boomers and older generations, representing 81% of all transfers; grantor trusts used by 77% of high-net-worth practices).